

§ 633. Suspended judgment. (a) Rules of court shall define permissible terms and conditions of a suspended judgment. These terms and conditions shall relate to the acts or omissions of the parent or other person responsible for the care of the child.

(b) The maximum duration of a suspended judgment under this section is one year, unless the court finds at the conclusion of that period that exceptional circumstances require an extension of that period for one additional period of up to one year. Successive extensions may not be granted.

(c) The order of suspended judgment must set forth the duration, terms and conditions of the suspended judgment, and must contain a date certain for a court review not later than thirty days prior to the expiration of the period of suspended judgment. The order of suspended judgment must also state in conspicuous print that a failure to obey the order may lead to its revocation and to the issuance of an order terminating parental rights and committing the guardianship and custody of the child to an authorized agency for the purposes of adoption. A copy of the order of suspended judgment, along with the current permanency plan, must be furnished to the respondent.

(d) Not later than sixty days before the expiration of the period of suspended judgment, the petitioner shall file a report with the family court and all parties, including the respondent and his or her attorney, the child's attorney and intervenors, if any, regarding the respondent's compliance with the terms of suspended judgment. The report shall be reviewed by the court on the scheduled court date. Unless a motion or order to show cause has been filed prior to the expiration of the period of suspended judgment alleging a violation or seeking an extension of the period of the suspended judgment, the terms of the disposition of suspended judgment shall be deemed satisfied and an order committing the guardianship and custody of the child shall not be entered.

(e) If, prior to the expiration of the period of the suspended judgment, a motion or order to show cause is filed that alleges a violation of the terms and conditions of the suspended judgment, or that seeks to extend the period of the suspended judgment for an additional period of up to one year, then the period of the suspended judgment is tolled until entry of the order that disposes of the motion or order to show cause.

(f) Upon finding that the respondent has violated the terms and conditions of the order of suspended judgment, the court may enter an order revoking the order of suspended judgment and terminating the parental rights of the respondent or, where such extension is in the best interests of the child, extend the period of suspended judgment for an additional period of up to one year, if no prior extension has been granted.

(g) If an order of suspended judgment has been satisfied or has been extended, but the child nonetheless remains in foster care pursuant to a placement under article ten of this act or section three hundred fifty-eight-a of the social services law, a permanency hearing shall be completed as previously scheduled pursuant to section one thousand eighty-nine of this act, but no later than six months after the completion of the last permanency hearing. If guardianship and custody of the child have been transferred to the authorized agency upon an order revoking the order of suspended judgment, a permanency hearing shall be completed pursuant to paragraph one of subdivision (a) of section one thousand eighty-nine of this act immediately following, but in no event later than sixty days after, the earlier of the court's statement of its order on the record or issuance of its written order.